

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased: _____

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LUIS MATEO,

Plaintiff designates

Bronx County as the place of trial

Plaintiff,

The basis of the venue is where the
tort arose

-against-

THE CITY OF NEW YORK, JANNY CARRASQUILLO
P.O. OF NARCB BX, SHIELD #17343, TAX ID #950162,
DET. LOPEZ OF NARCB BX, N/H/A JOHN/JANE DOE
I, OTHER NEW YORK CITY POLICE OFFICERS
UNDER ARREST #B17653121 WHOSE NAMES ARE
NOT KNOWN AT THIS TIME N/H/A JOHN/JANE
DOE II-V, AS IT PERTAINS TO THE INCIDENT
THAT AROSE ON OCTOBER 18, 2017 AND NO
OTHER,

SUMMONS

Plaintiff resides at

LUIS MATEO

1960 Park Avenue

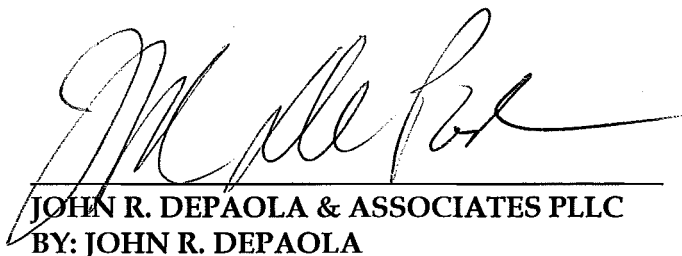
New York, New York 10037

Defendants.

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TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this
action and to serve a copy of your answer, or if the complaint is not served with this
summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days
after the service of this summons, exclusive of the day of service (or within 30 days after
the service is complete if this summons is not personally delivered to you within the State
of New York) and, in case of your failure to appear or answer, judgment will be taken
against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
October 19, 2018



JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400 / (718) 281-4000

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**JANNY CARRASQUILLO P.O. OF NARCB BX
SHIELD #17343, TAX ID #950162**

One Police Plaza, 11th Floor
New York, New York 10038

DET. LOPEZ OF NARCB BX

One Police Plaza, 11th Floor
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

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LUIS MATEO,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, JANNY CARRASQUILLO
P.O. OF NARCBX, SHIELD #17343, TAX ID #950162,
DET. LOPEZ OF NARCBX, N/H/A JOHN/JANE DOE
I, OTHER NEW YORK CITY POLICE OFFICERS
UNDER ARREST #B17653121 WHOSE NAMES ARE
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DOE II-V, AS IT PERTAINS TO THE INCIDENT
THAT AROSE ON OCTOBER 18, 2017 AND NO
OTHER,

Defendants.

-----X

LUIS MATEO, by his attorneys, JOHN R. DEPAOLA & ASSOCIATES PLLC,
respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff LUIS MATEO was a resident of New York County, City and State of New York.
2. At all times mentioned, Defendant CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 1st day of November, 2017 and within ninety (90) days after some or all of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to

receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants **JANNY CARRASQUILLO P.O. OF NARCB BX, SHIELD #17343, TAX ID #950162, DET. LOPEZ OF NARCB BX, N/H/A JOHN/JANE DOE I, OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B17653121 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE II-V**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
7. On or about October 18, 2017, at approximately 10:46 A.M., in the vicinity of the inside of 2723 Webb Avenue, Apt. 5J, County of Bronx, State of New York

the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **LUIS MATEO**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law. The police further did subject the Plaintiff to a strip-search with cavity inspection even though the Defendants had no legal cause to believe the Plaintiff had secreted contraband on his person, the arresting officer Carrasquillo took no steps to stop the illegal actions being done to the Plaintiff .

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about October 18, 2017, at approximately 10:46 A.M., in the vicinity of the inside of 2723 Webb Avenue, Apt. 5J, County of Bronx, State of New York, the Defendants jointly and severally did place Plaintiff **LUIS MATEO** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about October 18, 2017, at approximately 10:46 A.M., in the vicinity of the inside of 2723 Webb Avenue, Apt. 5J, County of Bronx, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2017BX040778. The Plaintiff was thereafter held in custody over the course of approximately two (2) days until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. **JANNY CARRASQUILLO P.O. OF NARCBBX, SHIELD #17343, TAX ID #950162** was the arresting officer on the instant case. **JANNY CARRASQUILLO P.O. OF NARCBBX, SHIELD #17343, TAX ID #950162** along with **DET. LOPEZ OF NARCBBX, N/H/A JOHN/JANE DOE I** and **JOHN/JANE DOE II-V** falsely arrested Plaintiff and is believed to be the officer who investigated the location in question and obtained the search warrant for the location. The search warrant was obtained based on incorrect, false and unverified information. **JANNY CARRASQUILLO P.O. OF NARCBBX, SHIELD**

#17343, TAX ID #950162 obtained the search warrant unlawfully. Upon entering the premise in question, JANNY CARRASQUILLO P.O. OF NARCB BX, SHIELD #17343, TAX ID #950162 arrested Plaintiff even though he had no probable cause to believe Plaintiff was in actual, constructive or statutory possession of a controlled substance. These officers pointed their guns at Plaintiff's face and forcefully pushed him onto the floor. Plaintiff was subjected to a strip-search with cavity inspection.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. On or about October 18, 2017, at approximately 10:46 A.M., in the vicinity of the inside of 2723 Webb Avenue, Apt. 5J, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully searched, seized and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2017BX040778. The Plaintiff was thereafter held in custody over the course of approximately two (2) days until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. JANNY CARRASQUILLO P.O. OF NARCB BX, SHIELD #17343, TAX ID #950162

was the arresting officer on the instant case. **JANNY CARRASQUILLO P.O. OF NARCB BX, SHIELD #17343, TAX ID #950162** along with **DET. LOPEZ OF NARCB BX, N/H/A JOHN/JANE DOE I and JOHN/JANE DOE II-V** falsely arrested Plaintiff and is believed to be the officer who investigated the location in question and obtained the search warrant for the location. The search warrant was obtained based on incorrect, false and unverified information. **JANNY CARRASQUILLO P.O. OF NARCB BX, SHIELD #17343, TAX ID #950162** obtained the search warrant unlawfully. Upon entering the premise in question, **JANNY CARRASQUILLO P.O. OF NARCB BX, SHIELD #17343, TAX ID #950162** arrested Plaintiff even though he had no probable cause to believe Plaintiff was in actual, constructive or statutory possession of a controlled substance. These officers pointed their guns at Plaintiff's face and forcefully pushed him onto the floor. Plaintiff was subjected to a strip-search with cavity inspection. Plaintiff was not a resident of the apartment, nor was he a frequent visitor nor on that date was he an overnight guest. He arrived at the apartment a mere 40 minutes before the police did to visit his friend. He stored no clothes or other personal property at the apartment, he was not a lessee of the apartment, nor was his name on any utility bills for the apartment. Plaintiff was only in the living room for the 40 minutes he was there, before the police arrived and saw no contraband or illegal items in the living room where he was and he did not access the other rooms.

AS AND FOR A FIFTH CAUSE OF ACTION

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
15. Defendants **JANNY CARRASQUILLO P.O. OF NARCB BX, SHIELD #17343, TAX ID #950162, DET. LOPEZ OF NARCB BX, N/H/A JOHN/JANE DOE I, OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B17653121 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE II-V**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
16. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
17. Plaintiff **LUIS MATEO** is and at all times relevant herein, a citizen of the United States and a resident of New York County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
18. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
19. On or about October 18, 2017, the Defendants, armed police, while effectuating the seizure of the Plaintiff **LUIS MATEO**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the

person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned, assaulted, and had multiple batteries committed against him, without the Defendants possessing probable cause to do so. **JANNY CARRASQUILLO P.O. OF NARCB BX, SHIELD #17343, TAX ID #950162** was the arresting officer on the instant case. **JANNY CARRASQUILLO P.O. OF NARCB BX, SHIELD #17343, TAX ID #950162** along with **DET. LOPEZ OF NARCB BX, N/H/A JOHN/JANE DOE I** and **JOHN/JANE DOE II-V** falsely arrested Plaintiff and is believed to be the officer who investigated the location in question and obtained the search warrant for the location. The search warrant was obtained based on incorrect, false and unverified information. **JANNY CARRASQUILLO P.O. OF NARCB BX, SHIELD #17343, TAX ID #950162** obtained the search warrant unlawfully. Upon entering the premise in question, **JANNY CARRASQUILLO P.O. OF NARCB BX, SHIELD #17343, TAX ID #950162** arrested Plaintiff even though he had no probable cause to believe Plaintiff was in actual, constructive or statutory possession of a controlled substance. These officers pointed their guns at Plaintiff's face and forcefully pushed him onto the floor. Based on **JANNY CARRASQUILLO P.O. OF NARCB BX, SHIELD #17343, TAX ID #950162, DET. LOPEZ OF NARCB BX, N/H/A JOHN/JANE DOE I** and along with **JOHN/JANE DOE II-V's** false statements Plaintiff was maliciously prosecuted without probable cause. **JANNY CARRASQUILLO P.O. OF NARCB BX, SHIELD #17343, TAX ID #950162** along with **DET. LOPEZ OF**

NARCBXX, N/H/A JOHN/JANE DOE I and JOHN/JANE DOE II-V

provided all the information that led to the Plaintiff to be prosecuted. The handcuffs were placed on Plaintiff's wrists so tight that Plaintiff's wrists turned red. Please note the Plaintiff was merely present in the apartment he vigorously maintains there was no contraband in plain view in the living room where Plaintiff was. Plaintiff was not an overnight guest at the apartment nor did he spend the night there, have mail addressed to him at the arrest location. He did not have any of his possessions that he left or stored at the apartment nor was he on any utility bills for the apartment or a lessee of the apartment.

20. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from assault to his person;
 - b. Freedom from battery to his person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from malicious prosecution;
 - f. Freedom from the use of excessive force during the arrest process;
 - g. Freedom from unlawful imprisonment;
 - h. Freedom from loss of his liberty.
 - i. Freedom from being illegally strip-searched with a cavity inspection.
21. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate

indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.

22. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SIXTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

23. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "22 with full force and effect as though set forth at length herein.
24. Defendant CITY OF NEW YORK has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
25. THE CITY OF NEW YORK was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest, a search warrant, said police officers

of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

26. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
2. Excessive force cannot be used against an individual who does not physically resist arrest.
3. An individual cannot be seen to be in constructive/statutory possession if he does not reside in the apartment, his name is not in the lease, he has no possessions kept/stored at the residence, he receives no mail at the premises, etc.

27. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "27" as it set forth at length herein.
29. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
October 19, 2018

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC

BY: **JOHN R. DEPAOLA**

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400 / (718) 281-4000

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

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LUIS MATEO,

Plaintiff,

-against-

VERIFICATION

THE CITY OF NEW YORK, JANNY CARRASQUILLO
P.O. OF NARCB BX, SHIELD #17343, TAX ID #950162,
DET. LOPEZ OF NARCB BX, N/H/A JOHN/JANE DOE
I, OTHER NEW YORK CITY POLICE OFFICERS
UNDER ARREST #B17653121 WHOSE NAMES ARE
NOT KNOWN AT THIS TIME N/H/A JOHN/JANE
DOE II-V, AS IT PERTAINS TO THE INCIDENT
THAT AROSE ON OCTOBER 18, 2017 AND NO
OTHER,

Defendants.

-----X

I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York

October 19, 2018



JOHN R. DEPAOLA

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

LUIS MATEO,

Plaintiff,

-against-

THE CITY OF NEW YORK, JANNY CARRASQUILLO P.O. OF NARCB BX, SHIELD #17343,
TAXID #950162, DET. LOPEZ OF NARCB BX, N/H/A JOHN/JANE DOE I, OTHER NEW YORK
CITY POLICE OFFICERS UNDER ARREST #B17653121 WHOSE NAMES ARE NOT KNOWN
AT THIS TIME N/H/A JOHN/JANE DOE II-V, AS IT PERTAINS TO THE INCIDENT THAT
Arose ON OCTOBER 18, 2017 AND NO OTHER,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for